

25NNCV00448 25NNCV00448

County: los-angeles

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Case Number: 25NNCV00448 Hearing Date: September 4, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Preliminary Injunction, Partition Action

Hearing Date: 9/4/26

CASE NO.: 25NNCV00448

CASE NAME: Morning Jr. v. Morning, et al.

Moving Party: Plaintiff Talmadge Morning Jr.

Responding Party: Unopposed

Notice: Sufficient

Ruling: DENY.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a property dispute partition action. The subject property, located at 629 E. Jackson Street, Pasadena, CA 91104 (the "Property"), is currently co-owned in equal one-third interests by plaintiff Talmadge Morning Jr. (Plaintiff) and Staci Morning and Kimberly Morning (collectively, Defendants). The Property has an estimated value of \$1,250,000.00.

On January 26, 2026, Plaintiff filed the instant motion seeking interim relief and a preliminary injunction. No opposition has been filed as of September 1, 2026.

LEGAL STANDARD

Pursuant to California Code of Civil Procedure § 872.120, in a partition action the Court "may hear and determine all motions, reports, and accounts and may make any decrees and orders necessary or incidental to carrying out the purposes of this title and to effectuating its decrees and orders". (Code Civ. Proc., § 872.120.)

The court may issue temporary restraining orders and injunctions, with or without bond, for the purpose of: (a) preventing waste; (b) protecting the property or title thereto; (c) restraining unlawful interference with a partition of the property ordered by the court. (Code Civ. Proc., § 872.130.)

The purpose of a preliminary injunction is to preserve the status quo and prevent irreparable harm pending a trial on the merits. (White v. Davis, (2003) 30 Cal.4th 528, 554.) To obtain a preliminary injunction, a moving party must show: (1) they would likely suffer an irreparable injury for which damages would be an inadequate remedy if the injunction were denied; and (2) there exists a responsible probability that she will prevail on the merits of her claims. (Huong Que, Inc. v. Luu, (2007) 150 Cal.App.4th 400, 408.)

DISCUSSION

Plaintiff seeks

an order (1) prohibiting any new occupants from residing at the subject property without the written consent of all co-owners and court approval; (2) requiring that all rental agreements for the subject property be in writing, signed by all co-owners, and filed with the Court; (3) requiring monthly reporting of all rent collected and expenses incurred with supporting documentation; (4) reallocating property expenses proportionally based on each co-owner's percentage ownership interest; (5) appointing a qualified referee with full management authority over the subject property, including leasing, maintenance, and financial decisions, with Court oversight; (6) establishing emergency procedures authorizing the referee to spend up to \$5,000 for emergency repairs with immediate Court notification; and (7) implementing the requested relief within 30 days with monthly Court review. (Mot., p. 2.)

Plaintiff asks

the Court to exercise its broad authority under the Partition of Real Property Act to grant interim relief to prevent waste, deterioration, and mismanagement of the subject property pending final resolution of this partition action and issue a preliminary injunction. (Mot., p. 3.) Plaintiff argues that the property is currently being mismanaged by Defendants and they have allowed their relatives who are unauthorized occupants to reside at the Property without Plaintiff's consent or any rental agreements in place. (Ibid.) Further, Plaintiff argues the property has resulting physical deterioration, safety violations, and code violations. (Ibid.) Plaintiff maintains that without Court intervention, the property will continue to deteriorate resulting in diminution of value and potential liability for co-owners.

However, although

Plaintiff states they satisfy a likelihood of success on the merits, Plaintiff has not made an argument showing the Court that there is a likelihood of success here. Thus, Plaintiff has not satisfied both elements required to implement a preliminary injunction.

Accordingly,

Plaintiff's motion is DENIED.

CONCLUSION

AND ORDER

Plaintiff

Talmadge Morning's motion for preliminary injunction is DENIED.

MOVING PARTY

shall

provide notice.